

IN THE FAMILY DIVISION
SECOND JUDICIAL DISTRICT COURT

HON. MASTER ALISON TESTA

FILED
Electronically
JV24-00105
2024-03-11 09:54:09 AM
Alicia L. Lerud
Clerk of the Court
Transaction # 10208980

REPORTER: CD/JAVS – Hearing Room C CLERK: M. Fiala
Case No. JV24-00104 JUVAB: EVAKAY BALDES Initial Filing Date: 1/23/2024
Case No. JV24-00105 JUVAB: ALEXIS CLARK Initial Filing Date: 1/23/2024
Hearing Date: 3/6/2024 Scheduled Start Time: 13:30:00
Case Type: JUV - ABUSE/NEGLECT
Event: HEARING ON PETITION - ZOOM; AVD

Minor Party Information:

MINR EVAKAY BALDES - @1412997 N/P waived

DOB: 10/19/2009 (14)

MINR ALEXIS CLARK - @1413001 N/P waived

DOB: 2/24/2014 (10)

ICWA Status: NO

Tribal Affiliation: None

Other Party Information:

PETR WASHOE COUNTY HUMAN SERVICES AGENCY - WCHSA

MOTH MEGAN MCCAFFERTY - @1299452 DOB: 8/25/1991 (32) ☒ Zoom

FATH DONOVAN CLARK - @1299453 DOB: 3/20/1985 (38) ☒ Zoom

FATH JUSTIN BALDES - @1413000 DOB: 10/3/1990 (33) ☒ Zoom

☒ DA Tyler E. Beach, Esq. – 10578 - Zoom

☒ APD Tirzah Mathews, Esq. – 11647 - Zoom

☒ PD Christine S. Sullivan, Esq. – 5073 - Zoom

N/P ATTY Jennifer Jeans, Esq. - 10481

☒ Atty – Erin Ching, Esq. for Jeans - Zoom

Social Worker: Natasha Mieras - Zoom Others Present: _____

☐ PARTIES SWORN.

PETITION:

☒ AMENDED: To be filed this date re: Mr. Clark

Donovan Clark: ☐ ADMIT ☒ SUBMIT ☐ DENY ☐ SEE MFR FILED HEREIN

Megan McCarfferty: ☐ ADMIT ☐ SUBMIT ☒ DENY ☐ SEE MFR FILED HEREIN

☐ OFFER OF PROOF MADE ☐ OFFER OF PROOF WAIVED

☒ PETITION SUSTAINED UNDER NRS 432B WITH A FINDING OF:

☐ ABUSE ☒ NEGLECT ☐ UNAVAILABILITY ☐ ABUSE/NEGLECT OTHER CHILD ☐ BASIC NEEDS ☐ OTHER _____

FINDINGS:

☐ COURT HAS JURISDICTION IN THIS MATTER PURSUANT TO NRS432B AND NRS 125A.

☐ BASED UPON SWORN TESTIMONY ☐ MOTHER ☐ FATHER ☐ _____ IS FOUND TO BE
INDIGENT AND COUNSEL IS APPOINTED.

☐ REASONABLE EFFORTS MADE PER NRS432B.393

☐ REASONABLE EFFORTS TOWARD REUNIFICATION NO LONGER REQUIRED

☐ AS INCONSISTENT WITH PLAN ☐ RE: _____
☐ CURRENT PLAN AND PLACEMENT IN _____ APPROVED

☐ NOTICE OF HEARING PROPERLY SERVED

☐ ICWA NOT APPLICABLE AND TO ADVISE IF THIS CHANGES

☐ AMENDMENTS:

ORDERS:

☐ WCHSA ☐ LEGAL CUSTODY ☐ PHYSICAL CUSTODY

☐ MOTHER ☐ FATHER(S) ☐ OTHER: _____ ☐ COMPLY WITH CASE PLAN & SERVICE AGREEMENT

☐ Subject to Court review ☐ Updated upon receipt of recommendations

☐ REC. ADOPTED ☐ REC. ADOPTED AS AMENDED ON THE RECORD

☐ AMENDMENTS: _____

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[] PARENTS TO SUBMIT FINANCIAL STATEMENT/COST OF CARE [] WAIVED [] ORDERED – Previously set at zero.
[] CASA APPOINTED [] CASA RELIEVED
[] COUNSEL FOR _____ RELIEVED
[] DISCRETION TO CLOSE BY LETTER REPORT AND ORDER
[] CUSTODY ORDER TO BE OBTAINED
[] WCHSA OFFER MAINTENANCE AND SPECIAL SERVICES TO MINOR CHILD(REN) AFTER AGE 18 PURSUANT TO NRS 432.030
[] WCHSA MAY CONSENT TO NECESSARY AND/OR EMERGENCY MEDICAL/DENTAL TREATMENT FOR CHILD(REN).
[] [] MOTHER [] FATHER(S) [] OTHER: SHALL PROVIDE WCHSA WITH IDENTIFYING INFORMATION,
INCLUDING NAME, ADDRESS AND PHONE NUMBER OF ANY RELATIVES
[] ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN EFFECT
[] VISITATION AS OUTLINED IN THE MFR FILED HEREIN
[] PERMISSION TO RECRUIT:
[] ADDITIONAL ORDERS:
[] PLR GRANTED
[] CASE DISMISSED
[] GUARDIANSHIP GRANTED PURSUANT TO NRS 432B.466-468
[] REUNIFIED [] OTHER:

PERMANENCY PLAN:

[] REUNIFICATION
[] APPLA
[] TERMINATION OF PARENTAL RIGHTS/RELINQUISHMENT [] ADOPTION
[] CONCURRENT PLANNING/REUNIFICATION [] _____
[] GUARDIANSHIP
[] OTHER _____
[] ESTIMATED DATE OF COMPLETION _____
[] COMPELLING REASONS NOT TO TPR APPROVED
[] AS IN REPORT [] AS STATED ON THE RECORD
[] REASONABLE EFFORTS TO FINALIZE PERMANENCY PLAN HAVE BEEN MADE
[] AS IN REPORT [] AS STATED ON THE RECORD

NEXT HEARING:

[X] CONTINUED TO: 3/20/24 at 2:00 FOR: [X] DISPO (father's only) [] OTHER: _____
[] REVIEW HEARING: _____ FOR: [] SEMI [] PERM [] HRG CHG PLAN [] OTHER: _____
[X] MEDIATION: 4/4/24 at 1:30 [X] SETTLEMENT CONFERENCE: 4/10/24 at 11:00
[X] EVIDENTIARY: 5/3/24 at 1:30 p.m.
[] ADDITIONAL INFORMATION: _____

PD – Her client, the mother, will be denying the petition.

APD – Her client, Mr. Clark, will submit to the amended petition filed as a notice of exhibit.

Mr. Clark and Mr. Baldes were sworn.

Court – Canvassed Mr. Clark and accepted his submission sustaining the first amended petition to be filed this date.

APD – Waived offer of proof.

Mr. Baldes – Questioned by the Court and requested an attorney. Further questioned by the Court and represented that he is employed, earns \$22 hour, supports 2 children and another 2 stepchildren, for a total 3 children live in the home with him, he is responsible for supporting them, he has no other source of income, he works 40 hours a week at this time, he works all year long, his hours change, during production he works overtime during the season, 40 hours a week or more. The total number of people in the household is 5.

Court – With Evakay, the Court will count 6 in the household and make a finding of indigency and appointed counsel for Mr. Baldes.

The Clerk's minutes are not an order of the Court, and may be altered, amended or superseded by a written order. Parties/Counsel may obtain a copy of the JAVS recording of any proceeding through the Second Judicial District Court Resource Center located at 1 S. Sierra Street, Third Floor Reno, Nevada 89501. If the matter was reported via Court Reporter, a transcript must be requested directly from the Court Reporter.

Clerk: M. Fiala Print Date: 3/11/2024
Deputy: N/A – Hearing held by Zoom

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Mr. Baldes – He receives medical benefits on behalf of the Shoshone tribe, but he is not enrolled. The tribe is in Fort Washakie Wyoming, he does not live on a reservation, he is not eligible for enrollment, he only claims dependency which affords him health care, he is certain he is not eligible, it ended with his grandfather.

Court – Appears that it is clear ICWA does not apply.

Mr. Baldes – Questioned by the DA and represented that the child is not an enrolled member.

Court – The adjudicatory hearing will be continued to disposition as to Mr. Baldes.